

SENATE No. 1358

The Commonwealth of Massachusetts

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to apprenticeship programs.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>1/28/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>1/28/2025</i>
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>1/28/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>1/28/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>1/30/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/3/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/24/2025</i>
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>2/26/2025</i>
<i>James J. O'Day</i>	<i>14th Worcester</i>	<i>4/3/2025</i>

SENATE No. 1358

By Mr. Moore, a petition (accompanied by bill, Senate, No. 1358) of Michael O. Moore, Brian W. Murray, James K. Hawkins, Angelo J. Puppolo, Jr. and other members of the General Court for legislation relative to apprenticeship programs in trades. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1208 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to apprenticeship programs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

- 1 SECTION 1. Section 44D of chapter 149 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after subsection (b) the following subsection:-
- 3 (c) This section shall apply to any request for bids or request for proposals for contracts
4 set forth herein which are issued more than 90 days after the date this section becomes effective.
5 This section shall further apply to any contract for the construction, reconstruction, installation,
6 demolition, maintenance or repair of any building that is subject to sections 26 through 27D of
7 chapter 149, inclusive, regardless of whether the project is not otherwise subject to sections 44A
8 to 44H of chapter 149, inclusive.

9 For all such contracts, all trade contractors and subcontractors working under the contract
10 shall, within 30 calendar days of award of the contract, maintain or participate in an apprentice
11 training program registered and approved pursuant to sections 11E through 11W of chapter 23,
12 inclusive, or registered and approved as a registered apprenticeship program by the U.S.
13 Department of Labor pursuant to 29 C.F.R. Section 29. Said contractors and subcontractors shall
14 employ apprentices registered and approved through said programs on said contract throughout
15 the duration of said contract. Effective January 1, 2025, to be eligible as an apprenticeship
16 program under this section, said registered and approved apprenticeship program must have
17 graduated apprentices to journey worker status for at least three of the past 5 years.

18 Within 45 calendar days of award of the contract, each contractor and subcontractor shall
19 provide written certification of compliance with this section and documentation identifying the
20 apprenticeship program which it maintains or in which it participates to the attorney general.

21 SECTION 2. Chapter 149A of the General Laws is hereby amended by adding the
22 following section:

23 Section 22AA. (a) This section shall apply to any request for bids or request for proposals
24 for contracts set forth herein which are issued more than 90 days after the date this section
25 becomes effective.

26 For all such contracts, all trade contractors and subcontractors working under the contract
27 shall, within 30 calendar days of award of the contract, maintain or participate in an apprentice
28 training program registered and approved pursuant to sections 11E through 11W of chapter 23,
29 inclusive, or registered and approved as a registered apprenticeship program by the U.S.
30 Department of Labor pursuant to 29 C.F.R. Section 29. Said contractors and subcontractors shall

31 employ apprentices registered and approved through said programs on said contract throughout
32 the duration of said contract. Effective January 1, 2025, to be eligible as an apprenticeship
33 program under this section, said registered and approved apprenticeship program must have
34 graduated apprentices to journey worker status for at least three of the past 5 years.

35 Within 45 calendar days of award of the contract, each contractor and subcontractor shall
36 provide written certification of compliance with this section and documentation identifying the
37 apprenticeship program which it maintains or in which it participates to the attorney general.

38 SECTION 3. Section 39M of chapter 30 of the General Laws, as so appearing, is hereby
39 amended by inserting after subsection (e), the following subsection:-

40 (f) This section shall apply to any request for bids or request for proposals for contracts
41 set forth herein which are issued more than 90 days after the date this section becomes effective.

42 For all such contracts, all trade contractors and subcontractors working under the contract
43 shall, within 30 calendar days of award of the contract, maintain or participate in an apprentice
44 training program registered and approved pursuant to sections 11E through 11W of chapter 23,
45 inclusive, or registered and approved as a registered apprenticeship program by the U.S.
46 Department of Labor pursuant to 29 C.F.R. Section 29. Said contractors and subcontractors shall
47 employ apprentices registered and approved through said programs on said contract throughout
48 the duration of said contract. Effective January 1, 2027, to be eligible as an apprenticeship
49 program under this section, said registered and approved apprenticeship program must have
50 graduated apprentices to journey worker status for at least three of the past 5 years.

51 Within 45 calendar days of award of the contract, each contractor and subcontractor shall
52 provide written certification of compliance with this section and documentation identifying the
53 apprenticeship program which it maintains or in which it participates to the attorney general.